ROOFING AND SHEET METAL SUBCONTRACT AGREEMENT

This Roofing and Sheet Metal Subcontract Agreement (the "Subcontract") is made and entered into as of February 2, 2026 (the "Effective Date"), by and between Redwood Peak Construction Co., a California corporation, California Contractor's License No. 1047729 (Class B), with its principal office at 2260 Industrial Way, Suite 140, Santa Rosa, California 95407 ("Contractor"), and Precision Roofing & Sheet Metal, a California corporation, California Contractor's License No. 1091356 (Class C-39 Roofing and Class C-43 Sheet Metal), Department of Industrial Relations Public Works Contractor Registration No. 1000418823, with its principal office at 815 Corporate Center Parkway, Santa Rosa, California 95407 ("Subcontractor").

Contractor has entered into a prime contract (the "Prime Contract") with the City of Santa Rosa, a California charter city ("Owner"), for the construction of the project known as Fire Station 5 Replacement, located at 2290 Fourth Street, Santa Rosa, California (the "Project"). Contractor desires to subcontract a portion of the work under the Prime Contract to Subcontractor, and Subcontractor desires to perform that work, on the terms stated below.

In consideration of the mutual promises in this Subcontract, Contractor and Subcontractor agree as follows.

ARTICLE 1 — DEFINITIONS

1.1 "Subcontract Work" means all labor, materials, equipment, supervision, services, and incidentals necessary to complete the roofing and sheet metal work described in Article 3 and the Subcontract Documents.

1.2 "Subcontract Documents" means the documents listed in Article 2, as they may be amended by written change order or written amendment signed by both parties.

1.3 "Final Completion" means the point at which the Subcontract Work is fully complete in accordance with the Subcontract Documents, all punch list items are corrected, all closeout submittals, warranties, and as-built drawings required of Subcontractor have been delivered to and accepted by Contractor, and Owner has accepted the Subcontract Work as part of the Project.

1.4 "Owner Payment" means Contractor's actual receipt of funds from Owner that include payment for Subcontract Work billed by Subcontractor.

1.5 "Backcharge" means any cost, expense, or damage incurred by Contractor because of Subcontractor's failure to perform any obligation under this Subcontract, including costs of cleanup, repair of damage caused by Subcontractor, supplemental labor, and corrective work.

ARTICLE 2 — SUBCONTRACT DOCUMENTS

2.1 The Subcontract Documents consist of: (a) this Subcontract, including any amendments and exhibits; (b) the Prime Contract between Owner and Contractor, including its general and supplementary conditions; (c) the Project drawings prepared by Sonoma Civic Architects, dated October 17, 2025, as listed in Sheet G-001; (d) the Project Manual, dated October 17, 2025, including Specification Sections 07 54 23 (Thermoplastic-Polyolefin Roofing), 07 62 00 (Sheet Metal Flashing and Trim), 07 71 00 (Roof Specialties), 07 72 00 (Roof Accessories), and 07 92 00 (Joint Sealants) as applicable to roofing; (e) all addenda issued before the Prime Contract bid date; and (f) the Contractor's Project Schedule, as updated from time to time.

2.2 Subcontractor assumes toward Contractor all obligations that Contractor assumes toward Owner under the Prime Contract, to the extent those obligations relate to the Subcontract Work. Contractor shall have the same rights and remedies against Subcontractor that Owner has against Contractor, to the extent they relate to the Subcontract Work.

2.3 If there is a conflict among the Subcontract Documents, the provision imposing the higher standard of quality or the greater obligation on Subcontractor shall govern, unless Contractor directs otherwise in writing. Subcontractor acknowledges that it has had an opportunity to review the Prime Contract and the other Subcontract Documents before signing this Subcontract.

ARTICLE 3 — SCOPE OF SUBCONTRACT WORK

3.1 Subcontractor shall furnish and install a complete, watertight roofing system and associated sheet metal for the Project, including without limitation: tapered polyisocyanurate insulation and cover board; 80-mil fully adhered thermoplastic-polyolefin membrane roofing over the apparatus bay and living quarters; walkway pads; prefabricated pipe and curb flashings; coping, gravel stops, and edge metal; counterflashing and reglets; scuppers, conductor heads, and downspouts; gutters at the training tower; roof hatch flashing; and all associated fasteners, adhesives, sealants, and accessories.

3.2 Subcontractor shall provide a manufacturer's twenty (20) year no-dollar-limit system warranty and shall coordinate the manufacturer's inspections required to issue that warranty.

3.3 Subcontractor shall provide all hoisting for its own materials, all temporary roof protection required during its work, and daily cleanup and removal of its debris to Contractor's designated dumpsters.

3.4 The following items are excluded from the Subcontract Work: structural roof deck; rooftop mechanical equipment and its supports; solar photovoltaic racking; and roof drain bodies (Subcontractor shall flash roof drains furnished by others).

3.5 Subcontractor shall comply with all applicable California prevailing wage requirements, including Labor Code Sections 1720 through 1861, shall submit certified payroll records electronically to the Department of Industrial Relations as required, and shall maintain registration as a public works contractor throughout performance of the Subcontract Work.

ARTICLE 4 — SUBCONTRACT SUM

4.1 Contractor shall pay Subcontractor, for full and complete performance of the Subcontract Work, the sum of Three Hundred Eighty-Six Thousand Dollars ($386,000.00) (the "Subcontract Sum"), subject to additions and deductions by written change order as provided in this Subcontract.

4.2 The Subcontract Sum includes all applicable taxes, permits and fees relating to the Subcontract Work, prevailing wage costs, insurance, bonds, warranties, and overhead and profit.

4.3 Within ten (10) days after the Effective Date, Subcontractor shall submit a schedule of values allocating the Subcontract Sum among the principal portions of the Subcontract Work. The approved schedule of values is attached as the Exhibit — Schedule of Values and shall be used as the basis for progress billings.

ARTICLE 5 — SCHEDULE AND PROSECUTION OF THE WORK

5.1 Subcontractor shall begin the Subcontract Work on the date stated in Contractor's written notice to proceed and shall prosecute the work diligently, in the sequence and at the pace required by Contractor's Project Schedule, as updated from time to time.

5.2 Subcontractor shall attend Contractor's weekly coordination meetings and shall provide a qualified foreman on site at all times when Subcontract Work is being performed.

5.3 Time is of the essence in the performance of this Subcontract. If Subcontractor fails to maintain the schedule, Subcontractor shall, upon written notice from Contractor, furnish additional labor, shifts, or equipment as needed to recover the schedule at no additional cost to Contractor.

5.4 If the Prime Contract assesses liquidated damages against Contractor for delay, and the delay is caused in whole or in part by Subcontractor, Subcontractor shall be liable for its proportionate share of those liquidated damages.

5.5 Subcontractor shall be entitled to an extension of time only for delays not caused by Subcontractor and only to the extent Contractor obtains a corresponding extension from Owner. Requests for extension must be submitted in writing within five (5) days after the start of the delay.

ARTICLE 6 — PROGRESS PAYMENTS

6.1 On or before the twenty-fifth (25th) day of each month, Subcontractor shall submit to Contractor an application for payment covering Subcontract Work performed through the end of that month, itemized according to the approved schedule of values and accompanied by the lien and stop payment notice releases required by Article 8 and current certified payroll records.

6.2 Contractor shall include Subcontractor's approved application in Contractor's next payment application to Owner. Contractor may adjust Subcontractor's application to reflect Contractor's good-faith evaluation of the percentage of work actually completed.

6.3 Contractor shall pay Subcontractor the approved amount, less retainage under Article 7 and any amounts withheld under Article 9, within ten (10) days after Contractor's receipt of Owner Payment for that work. Contractor and Subcontractor expressly agree in writing that this is a pay-when-paid provision: Contractor's obligation to pay each progress payment falls due a stated number of days after Contractor receives payment from Owner for the Subcontract Work included in that payment.

6.4 Contractor shall not be obligated to pay for any materials or equipment stored on or off the Project site. Subcontractor shall be paid only for materials that have been incorporated into the Subcontract Work in place, and no application for payment shall include any amount for stored materials.

6.5 Progress payments shall not constitute acceptance of defective or nonconforming work, and shall not waive any of Contractor's rights under this Subcontract.

6.6 Subcontractor shall promptly pay its lower-tier subcontractors, suppliers, and laborers from the funds received, in accordance with California Business and Professions Code Section 7108.5 and other applicable law.

ARTICLE 7 — RETAINAGE

7.1 Contractor shall retain five percent (5%) of the amount of each progress payment due to Subcontractor as retainage.

7.2 Retainage shall be released to Subcontractor upon Final Completion of the Subcontract Work and Contractor's receipt of retention from Owner. Contractor shall pay the retainage to Subcontractor within ten (10) days after both of these conditions have been satisfied.

7.3 As a condition of release of retainage, Subcontractor shall deliver to Contractor: (a) the final releases required by Article 8; (b) all warranties, operation and maintenance materials, and as-built drawings required by the Subcontract Documents; (c) the manufacturer's executed system warranty; and (d) evidence satisfactory to Contractor that all lower-tier claimants have been paid in full.

7.4 Contractor may withhold from retainage any amounts that Contractor is entitled to withhold under Article 9, subject to applicable law.

ARTICLE 8 — LIEN AND STOP PAYMENT NOTICE RELEASES

8.1 Because the Project is a public work, Subcontractor's rights to payment security arise from stop payment notices and the Contractor's payment bond, and the waiver and release forms described in this Article shall apply to those rights.

8.2 With each application for progress payment, Subcontractor shall submit a conditional waiver and release on progress payment covering the amount requested, executed by Subcontractor.

8.3 Within five (5) days after receiving each progress payment, Subcontractor shall deliver to Contractor an unconditional waiver and release on progress payment for the amount actually paid. Contractor may withhold Subcontractor's next progress payment until the unconditional waiver for the prior payment is received.

8.4 Subcontractor shall obtain and deliver to Contractor, with each application for payment, conditional waivers and releases from each of its lower-tier subcontractors and suppliers whose work or materials are included in that application, and shall deliver corresponding unconditional waivers and releases from each such lower-tier party after it has been paid.

8.5 All waivers and releases delivered under this Article, by Subcontractor and by its lower-tier subcontractors and suppliers, shall be in the statutory forms prescribed by California Civil Code Sections 8132, 8134, 8136, and 8138, as applicable. Contractor shall not be required to accept any waiver or release that departs from the statutory form.

8.6 With its final application for payment, Subcontractor shall deliver a conditional waiver and release on final payment, and within five (5) days after receiving final payment, an unconditional waiver and release on final payment, each in the applicable statutory form, together with corresponding final waivers from all lower-tier parties.

8.7 If any stop payment notice or bond claim is filed by any party claiming through Subcontractor, Subcontractor shall cause it to be released within ten (10) days after written notice from Contractor. If Subcontractor fails to do so, Contractor may withhold from amounts due Subcontractor an amount equal to one hundred twenty-five

percent (125%) of the claim, and Subcontractor shall reimburse Contractor for all costs and reasonable attorneys' fees incurred in connection with the claim.

ARTICLE 9 — WITHHOLDING, BACKCHARGES, AND SETOFF

9.1 Contractor may withhold from any payment otherwise due Subcontractor an amount sufficient to cover the cost of correcting defective or nonconforming Subcontract Work that has not been remedied. Contractor shall release the withheld amount once the defective work has been corrected to Contractor's and Owner's reasonable satisfaction.

9.2 Contractor may back charge Subcontractor for, and set off against any amount due or to become due to Subcontractor under this Subcontract, all Backcharges incurred by Contractor. Contractor shall give Subcontractor written notice of each Backcharge, with reasonable supporting documentation, before deducting it.

9.3 Contractor may also withhold amounts reasonably necessary to protect Contractor against: (a) unpaid claims of Subcontractor's lower-tier subcontractors, suppliers, or laborers; (b) Subcontractor's failure to submit required certified payroll records; (c) damage caused by Subcontractor to the work of others; or (d) penalties assessed by Owner or any public agency arising from Subcontractor's acts or omissions.

9.4 Before performing any work for which it intends to issue a Backcharge, except in an emergency, Contractor shall give Subcontractor written notice and forty-eight (48) hours to begin curing the condition.

9.5 Any withholding under this Article shall comply with applicable California law governing withholding on public works, including Public Contract Code Section 7107 and Business and Professions Code Section 7108.5.

ARTICLE 10 — CHANGES IN THE WORK

10.1 Contractor may, without invalidating this Subcontract, order changes in the Subcontract Work consisting of additions, deletions, or modifications. All changes shall be authorized by a written change order signed by Contractor before the changed work is performed.

10.2 Subcontractor shall submit a written proposal for any change within five (5) working days after Contractor's request, itemized by labor, materials, equipment, and markup. Markup on self-performed work shall not exceed fifteen percent (15%) for overhead and profit combined, and markup on lower-tier work shall not exceed five percent (5%).

10.3 Subcontractor shall not be paid for any extra work performed without a written change order or written field directive signed by Contractor's project manager.

10.4 If Subcontractor believes that any direction from Contractor constitutes a change, Subcontractor shall give written notice within three (3) working days after receiving the direction and before proceeding, except in an emergency. Claims not timely noticed are waived to the extent permitted by law.

10.5 Where a change arises from an Owner-directed change, Subcontractor's adjustment shall be limited to the amount Contractor actually recovers from Owner on Subcontractor's behalf, less Contractor's markup as allowed by the Prime Contract.

ARTICLE 11 — INSURANCE AND INDEMNITY

11.1 Before beginning work, Subcontractor shall furnish certificates and endorsements showing: (a) commercial general liability insurance with limits of not less than $2,000,000 per occurrence and $4,000,000 aggregate, including products-completed operations coverage maintained for at least three (3) years after Final Completion; (b) automobile liability of not less than $1,000,000 combined single limit; (c) workers' compensation as required by California law and employer's liability of not less than $1,000,000; and (d) umbrella liability of not less than $5,000,000.

11.2 Contractor, Owner, and Owner's officers, employees, and agents shall be named as additional insureds on Subcontractor's general liability, automobile, and umbrella policies on a primary and noncontributory basis, with waiver of subrogation.

11.3 To the fullest extent permitted by law, including California Civil Code Section 2782, Subcontractor shall defend, indemnify, and hold harmless Contractor and Owner from all claims, damages, losses, and expenses, including reasonable attorneys' fees, arising out of or resulting from the performance of the Subcontract Work, to the extent caused by the negligence, recklessness, or willful misconduct of Subcontractor or anyone for whom Subcontractor is responsible.

11.4 Subcontractor shall furnish payment and performance bonds, each in the amount of one hundred percent (100%) of the Subcontract Sum, issued by a surety admitted in California and acceptable to Contractor. The cost of the bonds is included in the Subcontract Sum.

ARTICLE 12 — WARRANTY

12.1 Subcontractor warrants that all materials furnished shall be new and of the quality specified, and that the Subcontract Work shall be free of defects in workmanship and materials and shall conform to the Subcontract Documents.

12.2 In addition to the manufacturer's system warranty, Subcontractor shall provide its own two (2) year workmanship warranty, commencing on the date of Owner's acceptance of the Project, under which Subcontractor shall repair all leaks and defects in the Subcontract Work at no cost to Contractor or Owner.

12.3 Subcontractor shall respond to leak reports within twenty-four (24) hours after notice and shall complete temporary repairs within forty-eight (48) hours. Because the Project is an essential-services facility, emergency leak calls affecting the apparatus bay or dispatch areas shall be answered within four (4) hours.

ARTICLE 13 — DEFAULT AND TERMINATION

13.1 If Subcontractor fails to supply sufficient skilled workers or proper materials, fails to make prompt payment to its lower-tier parties, disregards laws or Contractor's lawful directions, or otherwise materially breaches this Subcontract, and fails to begin curing the default within three (3) working days after written notice from Contractor, Contractor may: (a) supplement Subcontractor's forces and deduct the cost from amounts due Subcontractor; or (b) terminate Subcontractor's right to proceed and complete the Subcontract Work by any reasonable means.

13.2 If Contractor terminates for default, Subcontractor shall not be entitled to further payment until the Subcontract Work is complete. If the unpaid balance of the Subcontract Sum exceeds Contractor's cost to

complete, including reasonable overhead, the excess shall be paid to Subcontractor. If Contractor's cost exceeds the unpaid balance, Subcontractor and its surety shall pay the difference to Contractor.

13.3 Contractor may terminate this Subcontract for convenience upon written notice if Owner terminates the Prime Contract for convenience or otherwise directs termination. In that event, Subcontractor shall be paid for Subcontract Work properly performed through the termination date and reasonable demobilization costs, to the extent Contractor recovers those amounts from Owner, with no allowance for anticipated profit on unperformed work.

ARTICLE 14 — DISPUTE RESOLUTION

14.1 Disputes between Contractor and Subcontractor that involve Owner's acts, omissions, or responsibilities shall be presented through the claims procedures of the Prime Contract and any applicable claim procedures under Public Contract Code Section 9204. Subcontractor shall be bound by the outcome of those procedures to the same extent Contractor is bound.

14.2 Disputes solely between Contractor and Subcontractor shall first be the subject of a meeting between senior representatives of each party within ten (10) days after written request. If not resolved, the parties shall submit the dispute to non-binding mediation in Sonoma County, California, before resorting to litigation.

14.3 Pending resolution of any dispute, Subcontractor shall proceed diligently with the Subcontract Work and Contractor shall continue to make undisputed payments as provided in this Subcontract.

14.4 The prevailing party in any litigation arising out of this Subcontract shall be entitled to recover its reasonable attorneys' fees and costs.

ARTICLE 15 — GOVERNING LAW AND GENERAL PROVISIONS

15.1 This Subcontract shall be governed by and construed in accordance with the laws of the State of California. Venue for any action shall lie in the Superior Court of California, County of Sonoma.

15.2 Subcontractor shall not assign this Subcontract, or subcontract any part of the Subcontract Work, without Contractor's prior written consent. Subcontractor shall comply with the Subletting and Subcontracting Fair Practices Act, Public Contract Code Sections 4100 through 4114.

15.3 Notices shall be in writing and delivered by hand, by overnight courier, or by email with confirmation of receipt, to the addresses first stated above or to such other address as a party designates in writing.

15.4 This Subcontract, including its exhibits and any written amendments, is the entire agreement between the parties regarding the Subcontract Work and supersedes all prior negotiations and agreements. This Subcontract may be amended only by a written instrument signed by both parties.

15.5 If any provision of this Subcontract is found unenforceable, the remaining provisions shall remain in full force, and the unenforceable provision shall be enforced to the maximum extent permitted by law.

15.6 No waiver of any breach shall be deemed a waiver of any other or later breach. The headings in this Subcontract are for convenience only.

IN WITNESS WHEREOF, the parties have executed this Subcontract as of the Effective Date, and each signatory represents that he or she is authorized to bind the party for which he or she signs.

REDWOOD PEAK CONSTRUCTION CO. By: _____ Name: Daniel R. Halvorsen Title: Vice President, Operations Date: February 2, 2026

PRECISION ROOFING & SHEET METAL By: _____ Name: Maria T. Escobedo Title: President Date: February 2, 2026

AMENDMENT NO. 1 — PAYMENT PERIOD

This Amendment No. 1 is entered into as of February 9, 2026, by Redwood Peak Construction Co. ("Contractor") and Precision Roofing & Sheet Metal ("Subcontractor"), and amends the Roofing and Sheet Metal Subcontract Agreement between them dated February 2, 2026, for the Fire Station 5 Replacement project (the "Subcontract").

A1.1 **Change to payment period.** Section 6.3 of the Subcontract is amended by deleting the words "within ten (10) days after Contractor's receipt of Owner Payment" and replacing them with "within seven (7) days after Contractor's receipt of Owner Payment." As amended, Contractor shall pay each approved progress payment to Subcontractor, less retainage and any permitted withholding, within seven (7) days after Contractor receives payment from Owner for that work.

A1.2 **Written agreement confirmed.** The parties confirm in writing that Section 6.3, as amended by this Amendment No. 1, remains a pay-when-paid provision, and that the payment period of seven (7) days after Owner Payment replaces the ten (10) day period stated in the original Subcontract for all progress payments, including any payment application pending on the date of this Amendment.

A1.3 **No other changes.** Except as expressly stated in this Amendment No. 1, all terms of the Subcontract remain unchanged and in full force. The retainage release period stated in Section 7.2 is not changed by this Amendment. If there is a conflict between this Amendment No. 1 and the Subcontract, this Amendment No. 1 shall control.

REDWOOD PEAK CONSTRUCTION CO. By: _____ Name: Daniel R. Halvorsen Title: Vice President, Operations Date: February 9, 2026

PRECISION ROOFING & SHEET METAL By: _____ Name: Maria T. Escobedo Title: President Date: February 9, 2026

EXHIBIT — SCHEDULE OF VALUES

Item	Description	Scheduled Value
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1	Mobilization, submittals, and manufacturer coordination	$14,000.00
2	Bonds and insurance	$9,500.00
3	Tapered polyisocyanurate insulation and cover board	$78,500.00
4	80-mil TPO membrane, fully adhered (apparatus bay)	$82,000.00
5	80-mil TPO membrane, fully adhered (living quarters)	$54,000.00
6	Pipe, curb, drain, and roof hatch flashings; walkway pads	$21,500.00

7	Coping, gravel stops, and edge metal	$43,000.00
8	Counterflashing and reglets	$16,500.00
9	Scuppers, conductor heads, downspouts, and gutters	$31,000.00
10	Hoisting, temporary protection, and cleanup	$12,000.00
11	Punch list, closeout, and manufacturer warranty inspection	$8,000.00
12	Warranty documentation and as-built drawings	$6,000.00
13	Prevailing wage compliance and certified payroll administration	$10,000.00
	****Subcontract Sum****	****$386,000.00****